



CRWP-36-2025 (O&M)

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107

**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

CRWP-36-2025 (O&M)

Date of Decision: January 07, 2025

Garima and another

.....Petitioners

Versus

State of Haryana and others

.....Respondents

CORAM: HON'BLE MR.JUSTICE RAJESH BHARDWAJ

Present: Mr.Munish Garg, Advocate
for the petitioners.

.....

RAJESH BHARDWAJ, J.(ORAL)

1. Present petition has been filed under Article 226 of the Constitution of India for directing respondents No.2 and 3 to protect the lives and liberty of the petitioners and also directing respondents No.4 to 6 not to interfere in the personal lives and liberty of the petitioners and further directing respondents No.2 and 3 not to allow/let respondents No.4 to 6 or anybody else to interfere with the liberty and lives of the petitioners or to harass them in any manner against the wishes of the petitioners or to cause any detriment to them in any manner taking into consideration representation, dated 31.12.2024, Annexure P-7.

2. At the outset it has been submitted by learned counsel for the petitioners that inadvertently in the memo of parties, respondent No.3 has been written as SHO, Police Station City-2, Barnala, District Barnala, however, the same is SHO, City Narwana, District Jind and he may be permitted to correct the same by filing the fresh memo of parties.

3. Prayer made by learned counsel for the petitioners is allowed.



correction regarding particulars of respondent No.3, as prayed for above.

4. Learned counsel for the petitioners states that both the petitioners are major and have performed marriage against the wishes of respondents No.4 to 6 and have sought protection to their life and liberty. They apprehend danger from respondents No.4 to 6. Their marriage certificate and marriage photographs evidencing their marriage are on record as Annexures P-5 and P-6. The petitioners have submitted a representation, dated 31.12.2024 (Annexure P-7) to respondent No.2.

5. Notice of motion to respondents No.1 to 3-State only.

6. On asking of the Court, Mr.Kirpal Singh Thakur, AAG, Haryana, who is present in Court, accepts notice on behalf of the respondents/State.

7. Without entering upon an exercise to evaluate the evidentiary value of the documents placed on the file, I dispose of the petition with a direction to respondent No.2-Senior Superintendent of Police, District Jind, to decide the representation (Annexure P-7) of the petitioners and grant them protection, if any threat to their life and liberty is perceived. It is clarified that this order shall not be taken to grant immunity to the petitioners from legal action for violation of law, if any, committed by them. This order would not be understood having expressed any opinion whatsoever by this Court on the validity of the marriage performed by the petitioners.

January 07, 2025

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(RAJESH BHARDWAJ)

JUDGE

1. Whether speaking/reasoned ?

Yes/No

2. Whether reportable ?

Yes/No